



JAMAICA CONSTABULARY FORCE
Ethics and Integrity Policy

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Jamaica Constabulary Force ETHICS AND INTEGRITY POLICY

(April 2011)



FOREWORD

The senior leadership of the Jamaica Constabulary Force is committed to transforming the organisation into a highly ethical and professional body that its members can be proud of and that the community can have confidence and trust in. The

community of Jamaica is entitled to high standards of ethics and integrity, and professional behaviour by their police force that is free of corruption and misconduct.

This view is emphasised in our *Vision*:

“...to become a high quality, professional and service-oriented organisation that is valued and trusted by all the citizens of Jamaica”

that involves all of us, both sworn and non-sworn members working together towards achieving the key priorities of our Corporate Strategy 2010-2014 and the Anti-Corruption Strategy 2010-2012.

To guide our behaviours and maintain standards through ethics and integrity in fulfilling our duties and roles we need collective guidance and adherence to our Oath of Office, Mission, Code of Ethics and policy. Some of our key strategic priorities are the development of a new Code of Ethics and an Ethics and Integrity Policy that is applicable to our administration and operating environments, and readily accessible to members.

I am pleased to introduce a new *Code of Ethics* and an *Ethics and Integrity Policy* developed by the leadership group.

The *Code of Ethics* has ten standards that we must strive towards to ensure that we embrace and apply appropriate standards and behaviour. In particular, there is an emphasis on *Professional Duty* and the *Duty of Supervisors*. Supervisors have a key role in the development and mentoring of officers, and are accountable for members' performance and conduct aligned to the *Code of Ethics*.

The *Ethics and Integrity Policy* provides overarching guidance on standards and behaviour for a variety of subject areas that relate to both on and off duty in one document source. All members will be required to acknowledge the contents and the meaning of its application within the JCF annually. In addition, the Policy acknowledgment and principles will also be meshed into individual performance management objective reviews.

I impress upon all members to read this document, understand its contents, discuss it with colleagues and supervisors and make it readily visible and accessible.

Owen Ellington, CD, M.Sc., B.Sc Commissioner of Police

Ethics and Integrity Policy



Section POLICY	Document Number Final Version 1.0 (April 2011)
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1. POLICY STATEMENT

It is the policy of the Jamaica Constabulary Force (JCF) that sworn and non-sworn members conduct their roles and responsibilities with integrity and transparency, and shall be in a manner consistent with the strategic objectives, ethical standards, confidentiality and professionalism set by the JCF, respective national legislation and international convention on human rights. Unethical and corrupt behaviour will not be tolerated by the Jamaica Constabulary Force (JCF) in the delivery of services on behalf of the government and to the community. It is the JCF's policy to comply with all laws, rules and regulations governing the administration of law in delivering services to the community of Jamaica.

Members must make every effort to correct any shortcomings in their behaviour or performance. All members must act honestly, truthfully, impartially and with integrity conducting their duties and roles. This obligation also extends to members involved in any way with any inquiry conducted as a result of a complaint to fully cooperate with investigators or reviewers.

Actions by sworn officers and non-sworn members that are unethical or in conflict with the Code of Ethics established by the JCF negatively affect its reputation and that of its members, and detract from the JCF's overall ability to effectively and efficiently deliver services to the community, and achieve its mission and vision.

Failure to comply with this policy and the Code of Ethics may result in disciplinary action, removal from office, termination of employment and/or civil or criminal proceedings.

2. CORE VALUES

- Our Members are our most important resource
- Continuous learning and improving: our building blocks
- Respect for law at all times
- Respect and equitable treatment for all individuals
- Honesty and Integrity are our watch words
- Policing in genuine partnership with our communities
- A commitment to the development needs of the Jamaican Society
- Transparency and accountability: a way of life for professionals
- Leadership that models professionalism
- The good name and reputation of the Force: building "Brand JCF"

3. CODE OF ETHICS

The Code of Ethics supported through this policy outlines the values conduct and performance expected of all members of the JCF. The standards of conduct and integrity to be complied by all JCF members are expressed in the following Code of Ethics standards. This Code of Ethics now replaces previous Statement of Ethics and Code of Conduct.

PROFESSIONAL DUTY

We will carry out the duties of a police officer professionally and ethically, comply with all lawful orders, policies, procedures and guidelines, shall obey and uphold the law, protect human dignity and uphold human rights and fundamental freedoms of all persons.

POLICE INVESTIGATIONS

We shall undertake investigations in a prompt, thorough, impartial and careful manner so as to

JCF Ethics and Integrity Policy

ensure accountability and responsibility in accordance with the law.

PRIVACY AND CONFIDENTIALITY

We will only access, use and/or disclose confidential information if required and shall comply with all relevant legislation and Jamaica Constabulary Force policy and procedure governing gathering, retention, use and disclosure of information.

USE OF FORCE

In carrying out our duties as police officers shall as far as possible apply non-violent methods before resorting to any use of force and shall comply with relevant legislation and Jamaica Constabulary Force policy and procedure governing use of force.

DETAINED PERSONS

We shall ensure that all detained persons are treated in a humane and dignified manner, and shall comply with relevant legislation and Jamaica Constabulary Force policy and procedure governing arrest and detention.

EQUALITY

We treat people with respect, impartiality, courtesy and sensitivity and recognise their interests, traditions, beliefs, rights, safety and welfare.

INTEGRITY

We act with integrity towards members of the community and make decisions that are honest, fair, impartial, and timely, and consider all relevant information that uphold the values and reputation of the Jamaica Constabulary Force, whether on or off duty.

ACCOUNTABILITY

We use the resources of the state in a responsible and accountable manner that ensures the efficient, effective and appropriate use of human, natural, financial and physical resources, property and information.

FITNESS FOR DUTY

We shall be fit to carry out our responsibilities commencing duty or on duty and when on call in accordance with Jamaica Constabulary Force policy and procedure.

DUTY OF SUPERVISORS

Our supervisors will be the primary promoters and positive agents of good conduct, and shall be role models in delivering professional, impartial and effective policing services to the community.

4. PURPOSE

The purpose of this policy is to:

- Establish, articulate and maintain ethical and professional standards of conduct aligned to the JCF's Codes of Ethics and core values, common practices and procedures for preventing, identifying, and managing unethical behaviour, corruption and mismanagement within the JCF.
- Establish and articulate standards and practices for ethical and professional behaviour for countering unethical and corrupt behaviour.
- Provide better understanding by sworn and non-sworn staff of their professional conduct, limitations and compliance with law at all times whether on or off duty.
- Guide sworn and non-sworn staff in conducting themselves ethically and professionally in the delivery of services to the community.
- Protect the JCF's image and reputation by ensuring that processes, procedures, practices and activities are undertaken with honesty, integrity, transparency and professionally.
- Ensure compliance with all laws, regulations and international convention.

5. SCOPE OF POLICY

This policy applies to all sworn and non-sworn members (including contract and temporary) contractors and sub-contractors, consultants or any other people or bodies associated with the JCF or any of its staff.

6. GUIDING PRINCIPLES

The JCF guiding principles set out our commitment to operate responsibly and democratically wherever we work and to engage with our stakeholders to manage the social and ethical impact of our service delivery activities throughout Jamaica. The JCF will:

- Create a zero tolerance culture towards corruption and bribery in its business practices and dealings.
- Clearly state corporate standards and principles on ethical behaviour and corruption prevention.
- Ensure that members shall have responsibility, be committed to maintaining policing operations integrity and transparency aligned with the Code of Ethics.
- Design and strengthen corruption prevention through new and refined policies and systems.
- Work closely with the Government of Jamaica and other agencies to support corruption prevention initiatives.
- Work in partnership with key stakeholders and the community of Jamaica to build an enduring anti corruption culture supported through its Corporate and Anti-Corruption Strategies.
- Maintaining administrative and operations practices integrity and transparency supported through good governance, and guided by this policy and supported by the Corporate and Anti-Corruption Strategies that includes monitoring, identification and treatment of risks, organisational and individual performance and systems auditing.
- Ensure conformance to legal requirements and respect laws and customs of Jamaica and its people.

7. DEFINITIONS

The following definitions apply to this policy. In the absence of a specific definition, the normal dictionary definition will apply:

“Apparent Conflict of Interests” means an apparent conflict of interests exists when it appears that a sworn or non sworn member’s private interests could interfere with the proper performance of their official duties.

Benefit means a benefit includes gift, gratuity, remuneration, allowance, fee subsidy, consideration, free service or entertainment other than as provided for as part of a member’s terms and conditions of employment.

‘Bribery’ means the offering, promising, giving or accepting of any undue pecuniary or other advantage in order to obtain or retain a business or other improper advantage.¹

‘Code of Ethics’ (How to do!) means is a set of principles of conduct within an organization that guide decision making and behaviour. The purpose of the code is to provide members and other interested persons with guidelines for making ethical choices in the conduct of their work.

‘Code of Conduct’ (what to do!) means a more specific organisational based document that outlines “the way things are done around here” as well as the organisation’s shared values and goals in terms of everyday actions and behaviours.

‘Corruption’ means behaviour on the part of officials in the public and private sectors, in which they improperly and unlawfully enrich themselves and/or those close to them, or induce others to do so, by misusing the position in which they are placed².

‘Discipline’ means training that corrects, moulds the mental faculties or moral character; control gained by enforcing obedience or order

‘Ethics’ means a set of principles of moral behaviour—the rules or standards governing the conduct of a person or the members of a profession”

‘Ethical’ means conforming to the principles of proper conduct, as established by society, a profession etc.

‘Fraud’ means deception by persons internal or external to the JCF, which is carried out to conceal the misappropriation of assets or otherwise for gain.

‘Improper’ means anything that is not in accordance with propriety of behaviour or conduct suitable for a particular purpose, person or occasion.

¹ Based on the International Chamber of Commerce definition in source: ICC Rules of Conduct Recommendations (2005)

² Based on the Asian Development Bank definition in source: ADB Anti-Corruption Policy (2004)

‘Integrity’ means possession of firm principles - the quality of possessing & steadfastly adhering to high moral principles or professional standards.

‘Jamaica Constabulary Force (JCF)’ means the Jamaica Constabulary Force, Island Special Constabulary Force and Rural Police.

‘May’ means discretionary.

‘Maladministration’ means an administrative action that is unlawful, arbitrary, unjust, oppressive, improperly discriminatory or taken for an improper purpose.

‘Member’ mean both sworn and non-sworn members of the Jamaica Constabulary Force.

‘Natural Justice’ means Natural Justice (or Procedural Fairness) is concerned with ensuring that a fair decision is reached by an objective decision maker. It requires that two rules be observed:

- The **hearing rule**, which states that a person or body deciding a particular matter must give the affected person the opportunity to present their case and have that material considered before any decision is made.
- The **rule against bias**, which states that a decision maker should have no personal interest in the matter to be decided, have no bias as to the outcome and act in good faith throughout the process.

‘Non-sworn member’ means a public servant employed in the Jamaica Constabulary Force.

‘Outside Employment’ means any type of employment for which a benefit may be received exclusive of the Jamaica Constabulary Force (JCF).

‘Performance Management Approach’ is defined as a method that encompasses all organisational components and activities relating to individual, team, business area and organisational performance. Such an approach includes performance appraisal, strategic and business planning, management accountability and Strategic Human Resource Management—training, development, recruiting, and selection.³

‘Sworn member’ means a member that is a sworn police officer of the Jamaica Constabulary Force.

‘Shall’ means mandatory.

‘Tenure’ means the designated period that a member can remain for a particular position.

‘Theft’ means the unauthorised removal or use of property belonging to the JCF by a member or any other person or entity located on JCF facilities or vehicles.

‘Value’ means the principles of right and wrong that are accepted by an individual or a social group.

8. REFERENCES

- JCF Corporate Strategy 2010—2014
- JCF Force Orders and Instructions
- JCF Force Orders 2515 (Pre-Employment Statement)
- JCF Anti-Corruption Strategy 2010-2012
- JCF Communications Policy
- JCF Firearms and Use of Force Policy
- JCF Grievance Policy
- JCF Informant Handling Policy
- JCF Secondary Employment Policy
- *JCF Ethics Committee Terms of Reference*
- *JCF Ethics and Integrity Framework*
- *JCF Polygraph Procedures and Guidelines*
- *JCF Information Systems User and Security Standard Operating Procedure*

³ (Gillespie, 2006; Furnham, 2004; Radnor et al., 2004; Coutts et al., 2003; Cederblom et al., 2002; Vickers et al., 2001).

9. POLICY DETAILS

This policy is designed to protect the JCF's image and reputation by ensuring that processes, procedures, practices and activities are undertaken with honesty, integrity, transparency and professionally. The JCF expects the highest standard of ethical behaviour from its members. The policy provides an outline of the approach and commitment by the JCF to the prevention, detection and control of unethical and corrupt behaviour and activity. The Code of Ethics, and an Ethics and Integrity Framework underpin and guide integrity and transparency of policing service delivery activities at the staff and organisational levels in support of Corporate and Anti-Corruption Strategies.

Members will be subject to performance appraisal/management. Ethics and integrity will form part of the assessment, and training and development components to ensure compliance with the Code of Ethics.

9.1 REPORTING UNETHICAL AND CORRUPT BEHAVIOUR

Reporting incidents of or suspicious behaviour relating to a criminal action, corruption, unlawful conduct, dishonest and unethical conduct, breaches of discipline and conflicts of interest is important for the JCF to become an ideal ethical organisation free of corruption. Members of the JCF shall report incidents or suspicious behaviour on corrupt unethical. A failure to report incidents or suspicious behaviour is viewed as unprofessional conduct. It is your duty to report the above conduct to one of the following:

- Your immediate supervisor;
- A Gazetted Officer;
- Manager, Commandant, Commanding Officer or Assistant Commissioner of Police;
- Anti-corruption reporting hotline **(1-800-CORRUPT) 1-800-267-7878**;
- Deputy Commissioner of Police, Inspectorate of Constabulary;
- Assistant Commissioner of Police (Anti-Corruption Branch); and/or
- Corruption Prevention Commission

Members requiring support or confirmation of their disclosure remaining confidential are encouraged to contact the Deputy Commissioner of Police, Inspectorate of Constabulary/Chair of the Ethics Committee.

9.2 EARLY INTERVENTION AND HONEST MISTAKES

The JCF has a responsibility to provide all members with relevant and current training and development, which encompasses a variety of knowledge, skills and behaviour used to improve performance in delivering effective and efficient services to the community. Members have a responsibility to continually maintain their professional knowledge base and competence, and uphold the JCF's values and standards. Members are to ensure they acquaint themselves with relevant legislation, policies, procedures and guidelines to maintain professional knowledge and competence. In the conduct of police duties some mistakes may occur. Members in doubt about their delegated powers or conducting their duties should consult with their supervisor or manager.

9.3 MEMBERS' RESPONSIBILITIES

Legal Obligations

All sworn members are to comply with their annual legal obligations in completing Statutory Declarations for the Corruption Prevention Commission.

Supervisors' and Manager's Responsibilities

JCF policies and procedures shall reflect high ethical standards of service delivery and business operations for good governance and member behaviour to maintain JCF reputation, image and operational credibility. To strengthen ethical and anti corruption approaches, the JCF through its supervisors, managers and executive will strive to:

- Make resources available in support of the organisation in implementing corporate policies.

- Prevent unethical and corrupt behaviour.
- Prevent the occurrence of staff conflict of interest.
- Tackle all instances of both high-level and low-level mismanagement and corruption with equal conviction.
- Manage the '*Code of Ethics*'.
- Maintain policies and procedures that reflect evolving best practice and strengthen unethical and corruption prevention initiatives.
- Employ robust Risk Management, Monitoring and Evaluation approaches.
- Sensitise staff on corrupt, unethical and unprofessional behaviours and their consequences.
- Provide an effective and confidential means of reporting corrupt behaviour.

Members' Responsibilities

Emphasis is placed on members to maintain JCF reputation and integrity by:

- Abiding by the Code of Ethics;
- Complying with and obeying all legislation, JCF policy, procedures and guidelines;
- Obeying all lawful orders;
- Taking responsibility for your own professional and personal development and competence;
- Taking responsibility for and to account for your decisions and actions;
- Reporting incidents, risks and issues which deviates from our policies; and
- Continuously strive to maintain our integrity (reputation and image), and professionalism.

9.4 INTEGRITY TESTING

Ethics Committee

The JCF Ethics Committee is established as part of good governance to deal with unethical and corrupt behaviour efficiently and effectively, and to maintain and strengthen ethical standards with the outcome of building public trust and confidence.

The Ethics Committee functions involve:

- Raising and formalizing standards within the organization;
- Creating incentives to maintain best practices; and
- Reinforce procedures.
- Reviews intelligence led integrity issues submitted to them by:
 - Reviewing the reported matter(s) of concern, taint or adverse information; and/or
 - Interviewing a person subject to a matter of concern, taint or adverse information.
- Reviewing the risks posed by a member of staff, confronting them with evidence of their activities, and deciding on what action will reduce the risk to the organization or the public.

Polygraphing

In addition to these functions, the Ethics Committee will provide management and audit oversight to polygraphing through:

- Oversight of polygraphing testing resulting;
- Provision of direction in the content and conduct of the polygraph testing to ensure that ethical standards are met;
- Candidates meet the required standards and values sought by the JCF.

The Polygraph Unit

Members of the Jamaica Constabulary Force Polygraph Unit are internationally trained by the Royal Canadian Mountain Police to the highest standard. Each year the polygraphers have to attend an annual training seminar at the Canadian Police College to maintain their accreditation and exposure to new techniques and technologies.

1. Polygraph examinations are voluntary; however they are an integral part of the Jamaica Constabulary Force Vetting Process.

JCF Ethics and Integrity Policy

2. Polygraph examinations will be requested from individuals where there are areas of ethical issues regarding performance and behaviour whilst serving the JCF
3. Although polygraph examinations are voluntary, the Commissioner of Police may draw inference from persons who refuse to participate in the examination.

4. Recruits

Intelligence led random polygraph examinations will also be implemented for recruits joining the JCF and other members within the organisation should ethical issues arise.

5. The JCF has a number of key posts within the organisation which requires that the members of these departments are vetted to the highest level. As such members will be requested to avail themselves for vetting polygraph. These examinations are mandatory and failure to comply will bar individuals from working within these special units.

6. Training

The JCF invests large sums of money on the development of its staff and particularly from international assisted training as also for key management courses within the JCF. The Commissioner of Police has directed that all persons benefitting from such training are fully vetted.

7. Promotions

It is mandated that all persons from the rank of Deputy Superintendent of Police above are subject to vetting including polygraph examination. Although tests are voluntary, failure to comply may result in the Commissioner of Police refusing promotions.

Promotions from the rank of Corporal to Inspector will be subject to random intelligence led polygraph tests.

8. Termination of Contract

Sub-Officers (Corporals to Inspectors) and Constables may be enlisted for a further term of five (5) years. Sub-officers and Constables seeking re-enlistment will be subject to vetting including polygraph examination. Where Sub-Officers and Constables have demonstrated unethical or corrupt behaviour, the right to re-enlistment may be rescinded by the Commissioner of Police.

9. Retirement in the Public Interest

Members may be separated from the JCF by requiring them to retire in the *Public Interest* where it appears to the Commissioner of Police that a member's worth, professionalism and ethics are not suitable for continuing in the JCF. Determinations will be supported through vetting and polygraph examination.

10. Confidentiality

The confidentiality of all polygraph examinations will be managed by the Anti Corruption Branch (Polygraph Unit). No details will be disseminated without approval of the Assistant Commissioner of Police or Senior Superintendent of Police, Anti Corruption Branch. This is to maintain the integrity of the polygraph results.

9.5 USE OF FORCE

This is to be read in conjunction with the JCF Firearms and Use of Force Policy. In support of that policy members dependent on the circumstance of a situation and where possible shall apply non-violent methods before resorting to any use of force. The use of force should only be applied where no other means are effective or have no realistic chance of achieving the intended result. Where use of force is applied, it should be at the minimum level proportionate to the circumstances and threat.

9.6 PROPERTY, POLICE EQUIPMENT AND FACILITIES

Members shall account for all property, monies and equipment handled and managed in the course of their police duties governed by JCF policy, procedures and guidelines. Property relates to evidentiary exhibits, found and lost property, seized property, detained person property, warrant, fees and licence monies.

The JCF has an obligation to the community to properly manage its resources. JCF equipment and facilities will not be used for private purposes unless official permission has been granted in writing, and the use does not disrupt official work. JCF equipment or resources primary use is the delivery of policing services to the community and the use of equipment and facilities is to be strictly managed in accountable and transparent manner.

Any equipment used by members must be of the type that is approved and complies with JCF operational environment standards. The procurement and use of non-approved equipment is not authorised unless permitted by the Commissioner of Police.

Officers in charge of police facilities are not to allow the placing or fixing of political advertising material. However, advertising that promotes community safety and security may be displayed through the approval of the senior manager. Any advertisement other than community safety and security promotion must get prior approval through the Commissioner of Police from the appropriate authority.

9.7 CONDUCT OFF DUTY

Members when off duty shall conduct themselves in a professional manner, abide by the Code of Ethics and shall comply with all laws and JCF policies governing conduct. Members must at all times, act in a manner that is consistent with the values and standards of the JCF and such behaviour does not detract from the reputation and image of the JCF.

Members shall not use their police powers to resolve personal grievances except under circumstances that would justify the use of self-defence, actions to prevent injury to another person, or when a serious offence has been committed that would justify an arrest. In all other cases, members shall summon the police (using 119) in cases where there is personal involvement that would reasonably require law enforcement intervention (*Refer to 9.10 Conflict of Interest*).

9.8 SUBSTANCE USE (ALCOHOL AND DRUGS)

Members are not permitted to visit JCF premises if they are off duty and impaired to any degree by alcohol or drugs, unless seeking assistance or a place of safety.

Members of the Jamaica Constabulary Force are expected to be operationally fit for the commencement of any rostered or on call duty, and remain so, free of impairment by alcohol or any other form of drug.

Members must not perform their roles and responsibilities, remain at work or undertake any police related activity if impaired by alcohol or drugs. This includes attending any training functions or seminars. The use of prohibited drugs and or non-prescribed drugs is not permitted at any time on or off duty.

9.9 DISCRIMINATION, HARASSMENT AND HUMAN RIGHTS (DUTY OF CARE)

Conduct Towards Fellow Members

Members shall conduct themselves in a manner that will foster cooperation and teamwork among their colleagues, showing respect, courtesy, and professionalism in their dealings with one another.

Members shall not use language or engage in acts that demean, harass, or intimidate another person in the workplace. Members must treat all peers, colleagues and subordinates fairly and not use their position to provide favourable treatment to one member over another member because of intimate or familial relationships.

Members who have contracted HIV/AIDS or other communicable disease have a legal, professional and moral responsibility to members of the community and their colleagues to declare any such disease. It is important for members to safeguard the health of their colleagues and the community, and contribute to containing and treating communicable diseases. Members who have concerns or queries regarding this declaration should consult with the Force Medical Officer. Information will be treated confidentially.

Conduct Towards the Public

Members in dealing with members of the public must act fairly and impartially at all times regardless of race, colour, sex, language, religion, political or other opinion, national or social origin / class, association

with a national minority, disability, age, sexual orientation, marital or family status, property, birth or any other status. Any difference in treatment shall be required to be justified and proportionate.

Victims of Crime

Members will treat victims of crime and complainants with decency and courtesy. Members must:

- Uphold human dignity;
- Always be civil in dealing with clients and keep them informed regarding their contact with the JCF;
- Acknowledge that members of the community have a right to lodge complaints;
- Be prepared to accept accountability; and
- Make every effort to rectify any behaviour or performance which is the subject of a legitimate complaint

Detained Persons

Members must at all times try to ensure that persons in custody or care are treated in a dignified manner, prevented from suffering illness, injury or death and be alert to the duty of care as a result of member actions. Members in dealing with detained persons who may resist will, where the circumstances warrant use non-violent methods, or a minimum proportionate use of force to ensure the safety and security, prevent escape, injury, damage to property or the destruction of evidence. Any use of force must be lawful and proportionate to any threat.

9.10 CONFLICT OF INTEREST

Members are responsible for identifying and avoiding conflicts of interest that relate to their employment with the JCF. Members interests cannot conflict or be perceived to conflict with the public duties of a police officer. Conflict of interest arises if members allow their personal beliefs, associations or financial interests to interfere with the impartial performance of their duties. Members are encouraged to develop and maintain professional relationships with individuals and groups in the community, however, members must ensure they behave or act in a manner that is objective and without bias of:

- Personal beliefs or attitudes
- Personal or business interests or rights; or
- The interests or rights of your family, friends, or colleagues.

If a conflict of interest arises, or if there is any doubt that one may exist, you must declare this to your supervisor and it must be resolved in favour of the public interest. If you are unsure how to resolve the matter, seek the advice of your supervisor. An actual or objectively perceived conflict of interest, particularly in conducting investigations, must be reported immediately to your supervisor.

Where you become aware of an inquiry or matter requiring police attention, involving a friend, associate or person with whom you have had a relationship, you are not to become involved with the inquiry or matter other than to provide moral support. There may be exceptional circumstances, such as working in a small community, where some flexibility and discretion may be exercised. Attempts to contact inquiry staff may be perceived as an attempt to influence outcomes

9.11 ASSOCIATIONS

Criminal

Members shall not knowingly commence or maintain a relationship with any person who is a known criminal or has criminal associations that may or will compromise the performance of a member's police duties. The only exception to this rule will be where a member has an association through operational necessity in the performance of official duties, or where unavoidable because of familial relationships.

Members shall not knowingly join or participate in any organization that advocates, incites, or supports criminal acts or criminal conspiracies.

Declaration Obligation

Any member:

1. Who has an association with a criminal through the performance of their official duties shall declare any arranged meetings or contacts to their Commanding Officer who will assess and authorise the meeting or contact. All declarations and approvals are to be recorded and forwarded to the National Intelligence Bureau; or
2. Where a member's position as an employee has been or may have been compromised through a non-arranged meeting or contact with a criminal, the member may declare the non-arranged meeting or contact to their Commanding Officer. All declarations are to be recorded and forwarded to the National Intelligence Bureau.

Political

Members shall not openly display or engage in any political affiliation, activity or maintain associations with political representatives or parties that will compromise their duties or bring discredit to the JCF (*refer to 9.13 Information and Communications*).

Members are not to use their status or authority to solicit contributions or unlawfully interfere with the political and election process.

9.12 GIFTS OR BENEFITS

Members shall not use their authority or position for financial gain, for obtaining or granting privileges or favours not otherwise available to them or others except as a private citizen,

Members are encouraged to interact with the community in their daily duties and at times free or discounted food, alcohol, goods or services will be offered. However, gifts or benefits should not be accepted from any person or business unless objective assessment of the circumstances surrounding the giving of the gift or benefit indicates that no favour is expected and that no inference of improper association could be drawn by a reasonable person. Money or goods that can be readily exchanged for money will not be accepted. Some of these offers may be made in appreciation of work performed by members or the JCF and are made as a genuine expression of good will or in the course of a business marketing promotion. Members shall not directly or indirectly solicit such offers. You must not directly or indirectly solicit or demand from any person or business a reward, commission (*'kickback'*), loan, favour or other advantage or consideration

Members shall report any unsolicited gifts, gratuities, or other items of value that they receive and shall provide a full report of the circumstances of their receipt if directed.

9.13 INFORMATION AND COMMUNICATIONS

Accessing Information and Confidentiality

Members shall not access, use or disclose any information relating to the JCF, for example, criminal records, vehicle details, personnel details, intelligence details, confidential material or information obtained in the course of duties or disclose the contents of any official documents obtained in the course of duties.

Members must ensure that confidential, private and sensitive information is handled in line with good practice and that the integrity of such information is maintained at all times. Unless specifically authorised by law or direction from a supervisor, members must not access or disclose any information other than is legitimately required to discharge your duties.

Media Releases

This section is to be read in conjunction and adherence with the Communications Policy.

Members are to be mindful of their legal obligations when releasing information to the media. Members are not to comment on issues where they have no specific knowledge or have no authority. Where

members are approached by the media to make a comment, obtain details of an incident or a JCF policy position, details should be taken and the request referred to the Director of Communications. If members are not sure of their position, they should refer the matter to a supervisor or manager.

Any media release should be compiled in liaison with the Director of Communications and should consider:

- Protection of individual rights to privacy;
- Rights of victims of crime and their families;
- The rights of an accused person to a fair trial;
- Confidentiality, security and operational effectiveness of policing activities; and
- The appropriateness of commenting on policy issues.

Public Comments

This section is to be read in conjunction and adherence with the Communications Policy.

Members have equal rights of private citizens to hold private opinions, make public comment or enter into debate on political and community issues. Members must ensure separation between their private views and the official position of the JCF.

Members are not permitted in their official capacity or as a member of the JCF, to make public comment on or to criticise the administration of the JCF or Government, government departments or people representing them.

Before making authorised public comment on a sensitive issue or an issue, which is likely to attract a high level of media interest, consult with your supervisor or manager in liaison with the Director of Communications.

These requirements are not to inhibit your reporting obligations in relation to activities that are improper, illegal, corrupt or contrary to public interest.

Inappropriate and offensive Images

The JCF does not condone inappropriate, offensive, crude or obscene language or images. Members are not to:

- Distribute material that might be considered indecent, discriminatory, offensive or abusive, sexist or racist, or might be considered as harassment; and
- Distribute/broadcast unsolicited personal views on social, political, religious or other non-police related matters.

Accessing, forwarding, communicating or downloading inappropriate non-work related material will result in managerial action and may include disciplinary action, dismissal or removal.

Unauthorised use of Email/Internet

This is to be read in conjunction and adherence with the Information systems User and Security Standard Operating Procedure.

Members who have access to email and the internet shall use these systems in a manner consistent with the JCF policy, procedures and guidelines and standards of ethics, confidentiality and professionalism. The use of email shall also respect the rights and meet the expectations of our colleagues and users. Supervisors and Managers are responsible to prevent misuse and abuse of Email facilities. Members are responsible for all computer usage and Internet access under their user ID. Members therefore must not disclose your password to others or use other member's passwords to access systems.

Some examples of inappropriate access include but are not limited to accessing of pornographic sites, personal business use such as share trading, interactive games, downloading MP3 or similar files, games and unauthorised copying of written material.

Policy Owner:

COMMISSIONER OF POLICE